tion of the State health authority independently to the gonorrhea or syphilis departments of polyclinics. All health departments or clinics receiving funds shall provide facilities for (1) diagnosis and emergency treatment of all patients who apply; (2) continued treatment, consultative advice or opinion for all patients referred by private physicians; and (3) continued treatment for all patients unable to afford private medical care. The determination of the ability of patients to pay for private medical care shall be the responsibility of the State or local health department or constituted welfare agencies within these areas. Clinics collecting fees from semi-indigent patients shall not receive assistance under this act unless such fees are used solely by the venereal disease clinic for improvement of diagnostic and therapeutic services rendered therein.

(d) Free distribution of antisyphilitic drugs shall be made on the request of any physician authorized by the Law of his State to administer such drugs for the treatment of his patients: *Provided,* That where health departments have established the policy of furnishing drugs to the physician conditional upon receiving a morbidity report on the case of syphilis to be treated, that such policy will not in any way be altered by this regulation.

(e) To receive funds under this act, diagnositic and treatment services shall be as freely available to infected residents of other States and counties as to people who reside in the governmental unit providing the services. Clinics shall be so located as to be easy of access and of maximum convenience to the population, and shall be held in well-lighted and well-ventilated rooms. The number of clinic sessions shall be adequate to meet local needs, and shall be held at such times as to avoid economic loss to employed patients; the physical arrangements shall be such as to insure privacy for the patients when receiving medical attention, and the minimum equipment shall include all apparatus and reagents necessary for the proper examination and treatments of patients infected with syphilis and gonorrhea. Such equipment will also include apparatus for dark-field examination, ophthalmologic examination, and for lumbar punctures, unless there is immediate access to such examinations by some other means. The minimal data included on morbidity, clinical, and epidemiologic records shall be those presented in the reprint of the United States Public Health Service on "A Mechanical System for Reporting Morbidity, Treatment-Progress, and Control of Venereal Diseases," or such minimal data as may be later approved by the members of the Conference of State and Territorial Health Officers. Efficient case-finding and case-holding work shall be conducted in all clinics by qualified personnel.

(f) The services of a properly qualified full-time venereal disease control officer shall be provided in each State, and in any municipality receiving funds under this act, if the population of either exceeds 500,000 on the basis of the 1940 census: *Provided further,* That the State health officer, after consultation and agreement with the Surgeon General, may require that the above regulations will apply in cities of populations of less than 500,000 on the basis of the 1940 census.

(g) In reallocating funds under this act for local venereal disease control services, the State health authority shall give due consideration to the relatively higher prevalence of syphilis and gonorrhea in urban areas: *Provided,* That Federal funds shall be withheld from counties, health districts, municipalities, or other political subdivisions where the laws, ordinances, and regulations pertaining to prostitution are not being enforced.

(h) The State health authority shall give due consideration to keeping the total administrative costs for venereal disease control work, including both State and Federal funds, at the lowest possible level consistent with the prosecution of an effective venereal disease control program. The total cost of administration of the venereal disease control program shall not exceed 5 percent of all funds expended for this phase of public health work in States with a population greater than one million and 10 percent in States with a population of one million or less in terms of the following personnel and services:

(1) The State venereal disease control officer. The travel allowance of such officer should not be included as an administrative item because, in most States, this officer performs some duties connected with field work.

(2) The clerical assistant to the venereal disease control officer. The clerical assistant should perform those duties pertaining to the venereal disease control officer's correspondence, filing, or other general office work in this section of the health department.

(3) Any other clerical or stenographic personnel at the State level, provided the major portion of their activities is concerned with general office work under the immediate supervision of the State venereal disease control officer. This item includes personnel concerned with the accounting of funds, but excludes personnel concerned with statistical activities since the latter are included in the category of personnel performing duties connected with consultation and dissemination of technical information.

(4) All activities concerned with the administration of the merit system on the State level.

[SEAL] THOMAS PARRAN,
Surgeon General.

JULY 27, 1942.

Approved: August 6, 1942.

WATSON B. MILLER,
Acting Administrator,
Federal Security Agency.

[F. R. Doc. 42-7761; Filed, August 10, 1942; 11:22 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—General Land Office

[Circular No. 1514]

PART 259—SPECIAL CONTRACTS

REGULATIONS GOVERNING CONTRACTS FOR THE CUTTING AND REMOVAL OF YUCCA FROM THE PUBLIC LANDS

JULY 28, 1942.

Sec.

259.1 Authority.
259.2 Policy.
259.3 Lands subject to yucca contracts.
259.4 Form of contract; procedure.
259.5 Application.
259.6 Citizenship.
259.7 Fee.
259.8 Charges.
259.9 Execution of contract; bond and advance payment.
259.10 Use of land.
259.11 Assignment of contract.
259.12 Cancelation of contract.

AUTHORITY: §§ 259.1 to 259.12, inclusive, issued under R.S. 543, 2478; 43 U.S.C. 2, 1201; E.O. 9180, 7 F.R. 4317.

§ 259.1 *Authority.* Executive Order 9180 of June 5, 1942, issued to facilitate the prosecution of the war, authorizes the Secretary of the Interior

* * * to enter into contracts, through the Commissioner of the General Land Office, for the disposal of yucca growing on the public domain, under such terms and conditions as he may deem proper whenever he finds that the materials or products to be made from such yucca are substitutes, in whole or in part, for any material which has been or hereafter may be designated as strategic or critical, or both, or is otherwise essential to the prosecution of the war.

§259.2 *Policy.* In keeping with the Department's policy of making resources available for their highest use in facilitating the prosecution of the war, while at the same time giving every attention to the principles of conservation, it is the purpose of §§ 259.1–259.12 to provide for the cutting of yucca on the public lands for use as fiber and other products needed particularly as substitutes for products which cannot be imported from the usual sources and other products of the class designated in the executive order. Further in keeping with this policy of wise use and avoidance of waste of natural resources, the harvesting and removal of yucca from the public lands shall be carried on in such a manner that it does not initiate or increase soil erosion, fire hazards, unnecessary reduction in the usefulness of the land for other purposes or unnecessary damage to other useful resources. No cutting of yucca will be permitted which unnecessarily impairs scenic values or recreational uses. The harvesting shall be done on a sustained yield basis, thereby assuring a permanent supply, unless otherwise authorized in order to promote the maximum utilization of the lands and the resources thereof. When desirable to cut yucca in grazing areas, or in conjunction with the harvesting or removal of other products for raw material purposes, due regard shall be given to attaining the highest multiple use.